

IN THE SUPREME COURT OF BANGLADESH
HIGH COURT DIVISION
(CIVIL REVISIONAL JURISDICTION)

Present:

Mr. Justice S M Kuddus Zaman

CIVIL REVISION NO.1397 of 2008

Mst. Aziza Khatoon and others

.... Petitioners

-Versus-

Malek Sarker and others

.... opposite parties

None appears

.... For the petitioners.

Mr. A.H.M. Mushfiqur Rahman, Advocate

.... For the opposite party

Nos.1 and 2.

Heard and judgment on 24.01.2024.

This Rule was issued calling upon the opposite party Nos.1 and 2 to show cause as to why the impugned judgment and order dated 19.02.2008 passed by the learned District Judge, Thakurgaon in Title Appeal No.02 of 2008 dismissing the above appeal and affirming the judgment and decree dated 15.11.2007 passed by the learned Assistant Judge, Pirgonj, Thakurgaon, in Title Suit No.30 of 2006 dismissing the same.

Facts in short are that the plaintiffs as petitioners instituted Title Suit No.30 of 2006 in the Court of Assistant Judge, Pirgonj, Thakurgaon which was dismissed by the learned Judge of above Court vide judgment and decree dated 15.11.2007.

Being aggrieved by above judgment and decree of the learned Assistant Judge above plaintiffs as appellants preferred Title Appeal No.02 of 2018 to the District Judge, Thakurgaon on 07.02.2008. As such, above appeal was barred by limitation by 76 days.

The appellants filed a petition under Section 5 of the Limitation Act, 1908 for condonation of above delay of 76 days alleging that the appellant No.3 Mukter Hossain was the Tadbirkarak of above appeal who was sick and bed ridden during the period from 24.09.2007 to 21.01.2008. As such he could not prefer above appeal within the statutory period of limitation.

On consideration of submission of the learned Advocate for the appellant and materials on record the learned District Judge found above cause shown by the appellants as not justified and rejected the petition for condonation of delay and accordingly, dismissed the appeal on the ground of limitation.

Being aggrieved by above judgment and order of the learned District Judge, Thakurgaon the appellants as petitioners moved to this Court under Section 115(1) of the Code of Criminal Procedure and obtained the Rule.

No one appears on behalf of the petitioners when the matter was taken up for hearing although this matter appeared in the list for hearing today.

Mr. A.H.M. Mushfiqur Rahman, learned Advocate for the opposite party Nos.1 and 2 submits that above appeal was preferred after about 76 days of the pronouncement of the judgment and decree by the learned Assistant Judge and the appellants could not satisfactorily explain each day of delay in preferring above appeal by legal evidence. On consideration of above materials on record the learned District Judge has rightly dismissed the appeal on the ground of limitation which calls for no interference.

I have considered the submissions made by the learned Advocate for the opposite party Nos.1 and 2 and carefully examined all materials on record.

It turns out from the record that the learned Assistant Judge passed the impugned judgment on 15.11.2007 but the decree was drawn on 22.11.2007 and this appeal was preferred on 07.02.2008. In the month of December Civil Court remains on vacation so above period shall be excluded from limitation. As such above appeal was barred by limitation by 44 days not 76 days as was found by the learned District Judge.

The appellant has provided an explanation for causing of above delay stating that appellant No.3 Mukter Hossain who was the tadbirkar of above appeal fell sick and was bed ridden for the period during 15.11.2007 to 21.01.2008 and in support of above claim the appellant produced two certificates and prescriptions given by Dr.

Md. Obaidul Haque and Dr. Md. Shariful Islam. Above documents show that appellant No.3 Mukter Hossain was suffering from Hypertension with complicated epistaxis and was advised to remain bed ridden for two months.

The learned District Judge did not disbelieve the authenticity and correctness of above medical documents issued by two qualified Doctors. But rejected above petition for condonation of delay on the ground that since seven persons were appellants anyone of them could prefer this appeal which amounts to making out a third case which is not tenable in law.

Since the appellant succeeded to provide reasonable explanation as to the delay of 44 days in preferring above appeal by producing reliable medical documents issued by two qualified Doctors the learned District Judge should have accepted the explanation as sufficient and justified and condoned the delay of 44 days paving the way for disposal of the appeal on merit. But the learned District Judge failed to appreciate above materials on record properly and most illegally dismissed the appeal on the ground of limitation which is not tenable in law.

In above view of the materials on record I find substance in this revision under Section 115(1) of the Code of Civil Procedure and the Rule issued in this connection deserves to be made absolute.

In the result, the Rule is hereby made absolute. The impugned judgment and order dated 19.02.2008 passed by the learned District Judge, Thakurgaon in Title Appeal No.02 of 2008 is hereby set aside. Above delay of 44 days in preferring Title Appeal No.02 of 2008 is condoned.

The learned District Judge, Thakurgaon is directed to dispose of the appeal on merit after giving both sides an opportunity of being heard expeditiously preferably within a period of 1(one) year months from the date of receipt of this order.

However, there is no order as to costs.

Send down the lower Court's records immediately.

MD. MASUDUR RAHMAN
BENCH OFFICER